CHISHOLM, executor, *v.* GEORGIA.

Suits against states.

A state may be sued, in the supreme court, by an individual citizen of another state. And in such suit judgment may be entered, in default of an appearance.

THIS action was instituted in August term 1792. On the 11th of July 1792, the marshal for the district of Georgia made the following return :

"Executed as within commanded, that is to say, served a copy thereof on his excellency Edward Telfair, Esq., governor of the state of Georgia, and one other copy on Thomas P. Carnes, Esq., the attorney-general of said state. ROBERT FORSYTH, Marshal."

Upon which, Mr. *Randolph*, the Attorney-General of the United States, as counsel for the plaintiff, made the following motion, on the 11th of August 1792. "That unless the state of Georgia, shall, after reasonable previous notice of this motion, cause an appearance to be entered, in behalf of the said state, on the fourth day of the next term, or shall then show cause to the contrary, judgment shall be entered against the said state, and a writ of inquiry of damages shall be awarded." But to avoid every appearance of precipitancy, and to give the state time to deliberate on the measures she ought to adopt, on motion of Mr. *Randolph*, it was ordered by the court, that the consideration of this motion should be postponed to the present term. And now, *Ingersoll* and *Dallas* presented to the court a written remonstrance and protestation on behalf of the state, against the exercise of jurisdiction in the cause; but in consequence of positive instructions, they declined taking any part in arguing the question. The Attorney-General, therefore, proceeded as follows :

Randolph, for the plaintiff.—I did not want the remonstrance of Georgia, to satisfy me, that the motion which I have made, is unpopular. Before that remonstrance was read, I had learnt from the acts of another state, whose will must be always dear to me, that she too condemned it. On ordinary occasions, these dignified opinions might influence me greatly; but on *this, which brings into question a constitutional right, supported by my own conviction, to surrender it, would, in me, be official perfidy. [*420

It has been expressed, as the pleasure of the court, that the motion should be discussed, under the four following forms : 1st. Can the state of Georgia, being one of the United States of America, be made a party defendant in any case, in the supreme court of the United States, at the suit of a private citizen, even although he himself is, and his testator was, a citizen of the state of South Carolina? 2d. If the state of Georgia can be made a party defendant in certain cases, does an action of *assumpsit* lie against her? 3d. Is the service of the summons upon the governor and attorney-general of the state of Georgia, a competent service? 4th. By what process ought the appearance of the state of Georgia to be enforced?

I. The constitution and the judicial law are the sources from which the jurisdiction of the supreme court is derived. The effective passages in the constitution are in the second section of the third article. "The judicial power shall extend to controversies between a state and citizens of another state. In cases in which a state shall be a party, the supreme court shall have original